

The State and Its Elements

M. Talha Hamid

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1 The State and Its Elements

1.1 Definition of the State

The **state** is the most universal and powerful institution in human society. It is a **natural institution**, meaning it emerges naturally out of human interactions.

According to **Aristotle**, "*Man is a social animal, and by nature, he is a political being.*" He believed that to live within a state is an essential aspect of being human.

The modern term *state* comes from the Latin word **status**, meaning condition or position. **Niccolò Machiavelli** (1469–1527) first introduced the term in its modern sense in his political treatise, *The Prince*. The state is considered the highest form of human association, created to fulfill the fundamental needs of life and to ensure a well-ordered and prosperous existence.

There is no universally accepted definition of the state, as different scholars have provided varying perspectives:

Different Definitions of the State:

- **Woodrow Wilson**: "The state is a people organized for law within a definite territory."
- **Aristotle**: "The state is a union of families and villages aiming for a self-sufficient and honorable life."
- **Holland**: "A state is an assemblage of people occupying a certain territory, where the majority's will prevails over the minority."
- **Sidgwick**: "A state is a politically organized society governed by laws and a system of authority."
- **Garner**: "A state is a community of people living in a definite territory, free from external control, with an organized government that commands habitual obedience."
- **Prof. Laski**: "A state is a territorial society divided into a government and subjects, defined by the exercise of supreme coercive power."

1.2 Elements of the State

From the above definitions, the essential elements of the state can be categorized as:

1.2.1 Physical Elements

- **Population**: A state must have people to govern. **Population is essential** because without people, there can be no government or society. Greek philosophers believed

that a **state's population should be neither too large nor too small**—too large could make governance difficult, while too small might weaken economic and military strength.

- **Territory:** A state must have a **fixed geographical area** where its government exercises authority. This territory includes **land, water, and airspace**.

The size of a state varies—some are vast (e.g., **Russia, Canada**), while others are small (e.g., **Monaco, Vatican City**). However, there is **no fixed rule** regarding the ideal size of a state's territory.

According to **Prof. Elliott**, *"Territorial sovereignty, or the state's complete control within its boundaries, has been a fundamental principle of modern state life."*

1.2.2 Political Elements

- **Government:** The government is the **working authority** of the state. It **makes and enforces laws, ensures security, and manages state affairs**. Without a government, a state **cannot function**.

According to **Prof. Appadorai**, *"The government is the agency through which the will of the state is formulated, expressed, and realized."*

Similarly, **C.F. Strong** states, *"For laws to be made and enforced, the state must have supreme authority, which is exercised through government."*

- **Sovereignty:** The state possesses **absolute authority** over its internal and external affairs. **No external power can interfere with a sovereign state's decisions**. Sovereignty is what distinguishes a **state from any other form of association**.

2 Sovereignty

Sovereignty is the **supreme and final legal authority** within a state, beyond which no higher power exists. The concept of sovereignty developed alongside the rise of modern nation-states.

The term **sovereignty** is derived from the Latin word *superanus*, meaning supreme. The French political thinker **Jean Bodin** (1530–1597) is considered the father of modern sovereignty.

2.1 Types of Sovereignty:

- **Internal Sovereignty:** The state has **absolute authority** over its people, institutions, and laws within its borders. It ensures that no internal organization or individual can challenge the authority of the government.
- **External Sovereignty:** The state has **complete independence** from foreign control. It can freely engage in diplomatic relations, trade, and treaties without interference from any external entity.

According to **Harold J. Laski**, *"It is by possession of sovereignty that the state is distinguished from all other forms of human association."*

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3.1 Types of Sovereignty

- **Internal Sovereignty**: Refers to the **absolute authority of a state over its own people, laws, and governance within its borders**. The government has the supreme right to:
 - Create and enforce laws
 - Regulate institutions
 - Maintain order without interference from any internal groups or organizations

It ensures that no entity within the state can override the legal authority of the government.

- **External Sovereignty**: Means that a state is **independent and free from the control of other states or foreign powers**. It has the right to:
 - Conduct its own foreign policies
 - Enter international agreements
 - Engage in trade
 - Protect its territorial integrity

A state with full external sovereignty cannot be forced into decisions by another nation unless through diplomatic agreements or international law.

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4 State and Society

The relationship between the state and society is essential in political theory.

- **Society** consists of **individuals, families, and various social groups**. Early political thinkers considered state and society to be the same, but modern perspectives differentiate them.

- The **state is a part of society** but not identical to it. While society includes **voluntary associations, traditions, and cultural norms**, the state focuses on **law and governance**.

Prof. **Earnest Barker**, in his book *Principles of Social and Political Theory*, highlights the distinctions between **state and society** under three key aspects:

4.1 Differences Between State and Society

1. **Purpose or Function:** The **state** is a **legal authority** that primarily exists to:

- **Create and enforce laws**
- **Maintain order**
- **Ensure justice**

In contrast, **society** consists of **multiple associations** that serve various functions beyond governance, such as:

- **Intellectual** – Promoting knowledge, learning, and innovation.
- **Moral** – Encouraging ethical values and behavior.
- **Religious** – Providing spiritual and faith-based guidance.
- **Economic** – Facilitating trade, industries, and employment.
- **Aesthetic** – Promoting arts, literature, and cultural expression.
- **Recreational** – Encouraging leisure activities and social interactions.

2. **Organization and Structure:** The **state** is a **single, centralized legal entity** that holds authority over all individuals within its borders. **Society, however, is diverse**, made up of **various organizations, institutions, and communities**, each serving different roles.
3. **Method:** The **state enforces laws through coercion or compulsion** (e.g., police, courts, legal penalties). **Society, on the other hand, operates on voluntary participation**, allowing individuals to **join or leave different groups** based on personal choice. The **state uses legal power**, while **society relies on persuasion, traditions, and shared values** to maintain harmony.

5 State and Nation

The word **nation** comes from the Latin word *natio*, meaning birth or race. Often, the terms **state** and **nation** are used interchangeably, but they are distinct concepts.

According to **Leacock**, "*A nation is a body of people united by common descent and language.*" However, modern writers emphasize psychological and cultural aspects rather than racial origins.

A **nation consists of people** who share:

- **Common traditions**
- **Shared values**
- **A collective national identity**

Unlike the state, where unity is not a requirement, a nation thrives on the **collective consciousness of its people**.

6 State and Government

While the terms **state** and **government** are sometimes used interchangeably, they represent different concepts. The **state** is a **permanent and sovereign entity**, whereas the **government** is the **administrative mechanism** through which the state operates.

6.1 Differences Between State and Government

- **State:**
 - **Consists of population, territory, government, and sovereignty.** A state is defined by **four key elements**—a **permanent population**, a **defined territory**, a **government**, and **sovereignty**, which grants it full control over its affairs.
 - **Possesses original and absolute powers.** The power of the state is **inherent**, meaning it does not derive its authority from any external source. It has the final say in all matters within its jurisdiction.
 - **Permanent and continues indefinitely.** Unlike governments, which change over time, the state remains **constant**. Even when governments dissolve or get replaced, the **state itself does not cease to exist**.
 - **Abstract and invisible.** The state is an **intangible entity**—it exists as a concept rather than a physical structure. It is represented through **laws, institutions, and governance**, but it cannot be seen or touched.

Government:

- **A part of the state responsible for governance.** The government is **one of the components of the state** and serves as its **executive arm**, implementing laws and policies to maintain order.
- **Derives its powers from the state.** The government does not hold **absolute power**; it functions under the authority of the **state's constitution and legal framework**. Its legitimacy comes from the **laws and institutions established by the state**.
- **Temporary, as governments change over time.** Unlike the state, governments **rise and fall**, changing through elections, revolutions, or reforms. Different political systems (e.g., **democracies, monarchies, dictatorships**) lead to government transitions.

- **Concrete and visible.** The government consists of **physical entities** such as **leaders, officials, institutions, and administrative bodies**. It has a **defined structure** that can be observed in action through policymaking and law enforcement.

7 Branches of Government

A government typically has three main branches:

7.1 Executive

The **executive** is responsible for enforcing laws and administering governance. It functions as the operational arm of the state.

Types of Executives:

- **Real Executive:** Exercises actual power and decision-making authority.
- **Nominal Executive:** Holds a ceremonial role with minimal real power.

Powers and Functions of the Executive:

- Enforcing laws.
- Maintaining peace and order.
- Repelling aggression.
- Establishing diplomatic relations with other states.
- Declaring war when necessary to protect national security.
- Making appointments to high-ranking offices.
- Raising and allocating funds for governance.
- Convening legislative sessions and overseeing business.
- Issuing ordinances when the legislature is not in session.
- Implementing social and economic development projects.
- Granting pardons, reprieves, or reducing punishments.

7.2 Legislature

The **legislature** is the law-making branch of government. It plays a crucial role in amending the constitution and overseeing governmental administration.

Functions of the Legislature:

- **Enacting laws** – Formulating legal frameworks for governance.
- **Supervising the administration** – Ensuring the government functions within constitutional boundaries.
- **Approving the national budget** – Allocating resources for development and governance.
- **Addressing public grievances** – Representing the concerns of the citizens.
 - **Development plans:** Initiatives for economic and infrastructural growth.
 - **National policies:** Guidelines set by the government to achieve national goals.
 - **International relations:** Managing diplomatic and trade interactions with other countries.

The British Parliament is often referred to as the "**Mother of Parliaments**" as it is one of the oldest legislative institutions in the world.

According to **Prof. Laski**, the legislature's real function extends beyond law-making; it also supervises administration to safeguard the liberties of citizens.

Many legislatures are bicameral, meaning they have two houses:

- **National Assembly** (Lower House)
- **Senate** (Upper House)

7.3 Judiciary

The **judiciary** is the third essential branch of government. Its primary function is to **interpret laws and administer justice**.

According to **Lord Bryce**, *"There is no better test of the excellence of a government than the efficiency of its judicial system."* The welfare of citizens depends largely on the judiciary's effectiveness.

The judiciary is one of the **pillars of democracy**. It ensures **justice, equality, and liberty** for all citizens. An independent and impartial judiciary is a crucial feature of a democratic system.

According to **Justice Hughes**, *"We are under a constitution, but the constitution is what the judges say it is."*

Functions of the Judiciary:

- **Administration of justice:** The judiciary resolves disputes between individuals, organizations, and the government. By doing so, it upholds the laws and ensures justice is served impartially.

- **Determination of Law**: The judiciary has the authority to **interpret what constitutes law**. This involves defining the scope and meaning of laws and applying them to specific situations.
- **Interpretation of the Constitution**: In any legal system, the interpretation of the constitution is crucial. The judiciary **interprets and explains provisions** of the constitution and legal statutes, ensuring they are applied correctly.
- **Advisory Opinions**: The judiciary can **provide advisory opinions** on legal or constitutional questions referred to it, usually by the executive or legislative branches. This ensures legal clarity and assists in legislative processes.
- **Issuance of Writs**: To prevent rights violations and support lawful governance, the judiciary can issue orders or **writs** like:
 - **Habeas Corpus** – Protects against unlawful detention.
 - **Mandamus** – Orders a public official to fulfill their duty.
 - **Prohibition** – Prevents lower courts from exceeding jurisdiction.
 - **Certiorari** – Reviews decisions of lower courts for legal errors.
- **Guardian of the Constitution**: The judiciary acts as the **defender of constitutional values**, ensuring all laws and governmental actions adhere to constitutional principles and do not infringe on rights.